

ongoing, and no trial date has been set. (See Garcia Decl. ¶ 7.) Moreover, the proposed FAC does not appear to allege new or independent wrongful conduct by Paula Jurado; she is being added solely in her capacity as a co-owner of the Jurado property. This does not expand the factual issues in dispute.

Defendant next argues the motion should be denied because the proposed new causes of action fail as a matter of law. The court declines to reach the merits at this stage. Such arguments are premature on a motion for leave to amend, and the preferred procedure is to allow the amended pleading to be filed and then allow the parties to test its legal sufficiency by demurrer or other appropriate motion. (*Kittredge Sports, supra*, 213 Cal.App.3d at 1047 ["the preferable practice would be to permit the amendment and allow the parties to test its legal sufficiency by demurrer... or other appropriate proceedings"]; *Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 760 ["we believe that the better course of action would have been to allow Atkinson to amend the complaint and then let the parties test its legal sufficiency in other appropriate proceedings."]; *Ruiz v. Santa Barbara Gas & Elec. Co.* (1912) 164 Cal. 188, 196 ["The usual and orderly way to test the sufficiency of an amended complaint is, in the first instance, by demurrer, after the same has been filed...."].)

Defendant is free to raise pleading challenges via demurrer or other appropriate motion once Plaintiff has filed the FAC.

Disposition

Plaintiff's motion for leave to amend is granted. The proposed FAC attached to the motion is not deemed filed. Plaintiff must file and serve a stand-alone First Amended Complaint, in the form attached to the motion, no later than December 12, 2025.

7. 9:00 AM CASE NUMBER: C25-00444
CASE NAME: KYANI-DEVAREU HARRIS VS. COUNTY OF CONTRA COSTA COURT
***HEARING ON MOTION IN RE: FOR TRANSFER**
FILED BY: HARRIS, KYANI-DEVAREU
TENTATIVE RULING:

Plaintiff Kyani Devareu Harris's Motion to Transfer is denied.

Plaintiff Kyani-Devareu Harris alleges that defendants Contra Costa County Department of Child Support Services and the Contra Costa County Superior Court violated his civil rights relating to parental and child-support obligations. Although the complaint is not clearly pled, he appears to challenge the validity of his paternity and child-support orders in *Contra Costa County v. Harris*, No. MSF12-00144, asserting that DCSS and the Superior Court lacked jurisdiction and acted unlawfully in obtaining or issuing those orders.

Plaintiff files the present motion seeking transfer of this action to the United States District Court for the Northern District of California under Code of Civil Procedure section 396, contending that the factual and legal issues presented exceed this Court's jurisdiction and are "beyond the capacity of this Court to adjudicate effectively." (Mtn. at pp. 1–2.)

CCP section 396 does not authorize a state court to transfer a case to federal court. The statute applies only to misfiled matters within the California state court system and allows transfer to the correct California court. Federal removal is governed by 28 U.S.C. §§ 1441–1446, and only a defendant may remove a case. (*Progressive W. Ins. Co. v. Preciado* (9th Cir. 2007) 479 F.3d 1014, 1017 ["The removal statute ... is quite clear that only a 'defendant' may remove the action to federal court."].)

As Plaintiff identifies no cognizable authority for transferring this case to federal court, the motion is denied.

8. 9:00 AM CASE NUMBER: C25-00836
CASE NAME: MANUEL CARRASCO VS. GENERAL MOTORS, LLC
***HEARING ON MOTION IN RE: ENTRY OF PROTECTIVE ORDER**
FILED BY: GENERAL MOTORS, LLC

TENTATIVE RULING:

Hearing continued to January 22, 2026, at 9am in Department 20. Service did not include the date, time and location of the motion as required by CCP 1010 and California Rules of Court, rule 3.1110(b).

9. 9:00 AM CASE NUMBER: C25-01488
CASE NAME: JACQUELINE NAMPEERA VS. CMG MORTGAGE, INC.
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: CMG MORTGAGE, INC.

TENTATIVE RULING:

Introduction

Before the Court is Defendant CMG Mortgage, Inc.'s (CMG or Defendant) Motion To Compel Plaintiff Jacqueline Nampeera's individual claims to binding arbitration and stay this civil action until arbitration is complete. The Motion relates to Plaintiff's Complaint for (1) Private Attorneys General Act (Lab. Code § 2698, et seq.).

For the reasons described below, Defendant CMG Mortgage, Inc.'s Motion to Compel Arbitration is **granted**. The Parties are ordered to submit this matter to arbitration in accordance with the terms of the Arbitration Agreement. The Court orders this matter to be **stayed in full**, pending conclusion of the arbitration.

Procedural Background

On May 28, 2025, Plaintiff filed the Complaint alleging thirteen causes of action based on discrimination, harassment, wrongful termination, and retaliation. (See Naran Decl., at ¶ 3.) This case is still in its infancy. No deadlines have passed, no court proceedings have occurred, and the instant motion constitutes Defendant's first substantive filing. The parties have not engaged in discovery or taken any other steps that could suggest an intent to waive Defendant's right to arbitrate the current dispute.

Factual Background